▶ LAW

JUVENILE JUSTICE ON TRIAL

Text by **KAUSHIK DEKA**
Graphic by **TANMOY CHAKRABORTY/ AI**

Ten years after India revamped its child protection law, a new national study reveals a juvenile justice system still structurally fragile, uneven across states, and urgently in need of greater investment in personnel, capacity and oversight. Prepared by Tata Trusts in collaboration with leading civil society partners, including the Centre for Social Justice, Common Cause, Commonwealth Human Rights Initiative, DAKSH, TISS–Prayas and How India Lives, the India Justice Report's 'Juvenile Justice and Children in Conflict with the Law: A Study of Capacity at the Frontlines', released recently, offers the most comprehensive, data-driven audit of India's juvenile justice architecture. Built on parliamentary data and a year-long (November 2022 to October 2023) RTI exercise across 765 districts, it examines how well states are fulfilling their statutory duties under the Juvenile Justice (Care and Protection of Children) Act, 2015, focusing specifically on children in conflict with law.

IN CONFLICT WITH LAW

Most juveniles apprehended between Nov. '22 and Oct. '23 face IPC or SLL charges

3 out of 4
juveniles in the 16-18 age group, the most vulnerable transition period. But the system is handling them without the specialised, age-sensitive capacities

31,365
Cases registered under IPC and SLL

40,036
Juveniles apprehended in India

IPC: Indian Penal Code; SLL: Special and Local Laws; Source: Crime in India, 2023

THE MISSING MACHINERY

One in four Juvenile Justice Boards (JJB) lacks a full bench, leaving children's cases legally 'underpowered' from the start

707
JJBs in 765 districts surveyed of the total 806. Each should have 1 or more JJBs

24%*
Boards that do not have a full bench

18 out of 24
states and J&K (UT) surveyed have a JJB in every district

70%*
JJBs have a Legal Service Clinic attached

HIGH PENDENCY

Children stay entangled in the legal process for months, sometimes years, violating the JJ Act's mandate for swift, rehabilitative justice

100,904
Cases carried forward and registered between Nov. 2022 and Oct. 2023

55,816
Cases pending in JJBs

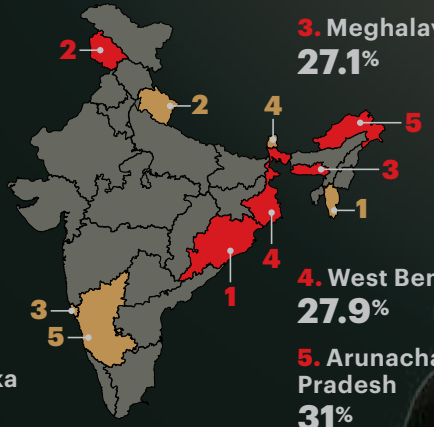
45%
Disposal rate

STATES APART

Stark contrasts in case disposal efficiency across states

HIGHEST DISPOSAL RATES

1. Mizoram **79%**
2. Uttarakhand **73.7%**
3. Goa **72.4%**
4. Sikkim **67.7%**
5. Karnataka **64.7%**



LOWEST DISPOSAL RATES

1. Odisha **17%**
2. Jammu & Kashmir **26.2%**
3. Meghalaya **27.1%**
4. West Bengal **27.9%**
5. Arunachal Pradesh **31%**